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SPD19C Seller's Property Disclosure (Commercial)
Adoption Date: August 5, 2025
Mandatory Use Date: January 1, 2026

THIS FORM HAS IMPORTANT LEGAL CONSEQUENCES AND THE PARTIES SHOULD CONSULT LEGAL AND TAX OR OTHER COUNSEL BEFORE SIGNING.

SELLER'S PROPERTY DISCLOSURE (COMMERCIAL)

THIS SELLER'S PROPERTY DISCLOSURE SHOULD BE COMPLETED BY SELLER, NOT BY BROKER.

Seller states that the information contained in this Seller's Property Disclosure ("SPD") is correct to **Seller's CURRENT ACTUAL KNOWLEDGE** as of the date signed by Seller. If the sales contract requires Seller to complete this SPD, this form must be fully completed to Seller's **CURRENT ACTUAL KNOWLEDGE**, as of the date of the Seller's Property Disclosure Deadline in the contract. **Any changes to the disclosures herein must be disclosed by Seller to Buyer promptly after discovery. In the event Seller discovers a new adverse material fact after completing this SPD, Seller must disclose in writing any such new adverse material fact to Buyer. Seller's failure to disclose a known adverse material fact** affecting the Property or occupant **may result in legal liability.** If Seller has knowledge of an adverse material fact affecting the Property or occupants, it must be disclosed whether there is a specific item on this SPD or not. If the Property is part of a Common Interest Community, this SPD is limited to the Property or unit itself, except as stated in Section N.

Broker is authorized to deliver a copy of this SPD to prospective buyers.

Seller and Buyer understand that this SPD is not a warranty or guarantee of any kind by the Seller or by any Broker or Agent representing the Seller, Property inspection services may be purchased and are advisable. This SPD is **not** intended as a substitute for an inspection of the Property. **Buyers are encouraged to obtain their own professional inspection(s).**

SELLER: Your answers are NOT limited to only the space provided in this SPD. Attach additional pages, reports, receipts, or any other documents you believe necessary for the information you provide to be complete.

Date SPD completed by Seller: _____

Property: _____

Seller(s): _____

Year Built: _____

Year Seller Acquired Property: _____

Seller ☐ is ☐ is not currently occupying the Property.

If Seller is not currently occupying the property, date Seller last occupied the Property: _____

During any period when Seller has not occupied the Property, the Property was ☐ vacant ☐ occupied by someone other than Seller.

I. IMPROVEMENTS

Note: The sales contract not this SPD, determines whether an item is included or excluded in the sale. If there is an inconsistency between this SPD and the contract, the contract controls.

A.	**BUILDING CONDITIONS** (all aspects of the Property) If you know of any of the following problems **EVER EXISTING,** check the "Yes" column:	**Yes**	
1	Structural problems with improvements	☐	

2	Structural supports or reinforcements added	☐	
3	Moisture and/or water, including, but not limited to, leakage/seepage in the basement/crawlspace	☐	
4	Damage due to termites, other insects, birds, animals, or rodents	☐	
5	Damage due to hail, wind, fire, flood, or other casualty	☐	
6	Any settling, movement, cracking, heaving, or breakage of the following:	☐	
	a. Foundations	☐	
	b. Floors	☐	
	c. Interior Walls	☐	
	d. Exterior Walls	☐	
	e. Driveways	☐	
	f. Sidewalks	☐	
	g. Patios	☐	
	h. Retaining Walls	☐	
	i. Other:	☐	
7	Window Leaks	☐	
8	Exterior Artificial Stucco (EIFS)	☐	
9	Subfloors	☐	
10		☐	

B.	**ROOF – General Information** Do you know of the following on the Property: If yes, provide the requested information in Comments	**Yes**	**Comments**
1	Indicate age of roof in Comments	☐	
2	Indicate roof material in Comments	☐	
3	Roof is under warranty	☐	
	a. Date of warranty expiration	☐	
	b. Warranty is transferrable	☐	☐ Yes ☐ No ☐ Unknown
4	Roof work done while under current roof warranty	☐	
	a. Date work completed	☐	
5		☐	
	ROOF If you know of any of the following problems **EVER EXISTING,** check the "Yes" column:	**Yes**	**Comments**
6	Roof leak	☐	
7	Damage to roof	☐	
8	Damage to skylight	☐	
9	Damage to gutter or downspout	☐	

10	Other roof problems, issues, or concerns	☐	
11		☐	

C.	**ELECTRICAL & TELECOMMUNICATIONS** General Information Do you know of the following on the Property: If yes, provide the requested information in Comments	**Yes**	**Age, if known**	
1	220 Volt service	☐		
2	Electrical Service: Amps _____	☐		
3	Landscape lighting	☐		
4	Electric provider -provide name in Comments	☐		
5	Cable/TV provider – provide name in Comments	☐		
6	Internet provider – provide name in Comments	☐		
7	Solar panels:	☐		☐ Owned ☐ Leased. If leased, provide the name and contact information of entity leased from: Output: _____
8	Wind generators	☐		☐ Owned ☐ Leased. If leased, provide the name and contact information of entity leased from:
9	Security system	☐		☐ Owned ☐ Leased. If leased, provide the name and contact information of entity leased from:
10	Doorbell	☐		☐ Wired ☐ Wireless ☐ Smart
11	Smoke/Fire Detector(s)	☐		☐ Battery ☐ Hardwire
12	Carbon Monoxide Alarm(s)	☐		☐ Battery ☐ Hardwire
13	Internet Wiring	☐		☐ Cable ☐ DSL ☐ Satellite ☐ Fiber ☐ Other: _____
14	Built In Sound System	☐		☐ Speakers- Built In ☐ Wiring- Built In ☐ Speakers- Wireless
15		☐		
	ELECTRICAL & TELECOMMUNICATIONS If you know of any problems **NOW EXISTING** with the following, **check the "Yes" column:**	**Yes**	**Age, if Known**	**Comments**
16	Light fixtures	☐		
17	Switches & outlets	☐		
18	Telecommunications system, equipment, or service	☐		
19	Inside wiring & block/jacks	☐		
20		☐		
	ELECTRICAL & TELECOMMUNICATIONS If you know of any problems **EVER EXISTING** with the following, check the "Yes" column:			
21	Electrical Service	☐		
22	Aluminum wiring at the outlets (110)	☐		
23	Solar panels	☐		
24	Wind generators	☐		
25	Electric Wiring or Panel	☐		
26		☐		

D.	**MECHANICAL** If you know of any problems **NOW EXISTING** with the following, check the "Yes" column:	**Yes**	**Age, if Known**	**Comments**
1	Elevator	☐		
2	Lifts or Hoists	☐		
3	Fire suppression and/or sprinkler system	☐		
4	Escalator	☐		
5		☐		
E.	**VENTILATION, AIR & HEAT – General Information:** Do you know of the following on the Property**:** If yes, provide the requested information in Comments	**Yes**	**Age, if known**	
1	Furnace	☐		
	a. Furnace Type	☐		☐ Forced Air Gas ☐ Forced Air Electric ☐ Forced Air Propane ☐ Radiant ☐ Gravity Flow ☐ Other (specify):
	b. Number of Units	☐		
	c. Zoned	☐		Location of zone 1: Location of zone 2: Location of zone 3:
2	Heating system (other than furnace).	☐		
	a. Type/Fuel	☐		
3	Free standing Heating Stove	☐		
	a. Fuel Source	☐		☐ Wood ☐ Pellet ☐ Corn ☐ Gas ☐ Other (specify):
4	Fireplace	☐		
	a. Type	☐		☐ Masonry ☐ Insert ☐ Wood Burning ☐ Direct Vent ☐ Other (specify):
	b. Fireplace starter	☐		☐ Switch ☐ Remote
5	Date fireplace/wood stove, chimney/flue last cleaned	☐		☐ Do not know
6	Fuel tanks	☐		☐ Owned ☐ Leased. If leased, provide the name and contact information of entity leased from:
7	Radiant heating system	☐		☐ Interior ☐ Exterior
	a. Interior Type	☐		
	b. Exterior Type	☐		
8	Fuel Provider _____	☐		Name and contact information:
9	Air Conditioning	☐		
	a. Type	☐		☐ Central Air: Age_____ No of Units: ____ ☐ Zoned ☐ Electric ☐ Other (specify): _____
	b. Number of units	☐		
	c. Zoned	☐		Number of zones:
10		☐		
	VENTILATION, AIR & HEAT If you know of any problems **NOW EXISTING** with the following, check the "Yes" column**:**	**Yes**	**Age, if Known**	**Comments**
11	Furnace	☐		

12	Heating system	☐		
13	Evaporative cooler	☐		
14	Window air conditioning units	☐		
15	Central air conditioning	☐		
16	Attic fan	☐		
17	Vent fans	☐		
18	Humidifier	☐		
19	Air purifier	☐		
20	Fireplace	☐		
21	Fireplace insert	☐		
22	Heating Stove	☐		
23	Fuel tanks	☐		
24		☐		

F.	**WATER – General Information:** Do you know of the following on the Property: If yes, provide the requested information in Comments	Yes	Age, if known	Comments
1	Water heater	☐		
	a. Number of Water Heaters	☐		
	b. Fuel Type	☐		
	c. Capacity	☐		
2	Water filter system	☐		☐ Owned ☐ Leased. If leased, provide the name and contact information of entity leased from:
3	Water softener	☐		☐ Owned ☐ Leased. If leased, provide the name and contact information of entity leased from:
4	Indicate location of master water shutoff in Comments	☐		
5	Type of well:	☐		
	a. Non-exempt well (outside designated groundwater basin)(irrigation or other uses)	☐		☐ Augmented well (irrigation/livestock/other) Well use: _____ Permit no: _____ Name of augmentation plan _____ ☐ Non-augmented well (irrigation/livestock) Well use: _____ Permit no:_____
	b. Non-exempt well (inside designated groundwater basin)	☐		☐ Non-tributary/not subject to replacement plan Well use: _____ Permit no: _____ Determination case no: _____ ☐ Not-non-tributary/subject to existing replacement plan Well use: _____ Permit no: _____ Determination case no: _____ ☐ Not-non-tributary/requires replacement plan (with no existing replacement plan) Well use: _____ Permit no: _____ Determination case no: _____ ☐ Large capacity Well use: _____ Permit no: _____ Determination case no: _____ Replacement plan required: yes ☐ no ☐ If yes, is a replacement plan in place? ☐ Yes ☐ No
6	Well metered	☐		
7	Well Pump	☐		
	a. Brand name and pump number	☐		
	b. Date installed	☐		
	c. Date of last inspection	☐		
	d. Date of last service	☐		
	e. Depth	☐		
	f. GPM and date last measured	☐		
8	Galvanized pipe	☐		
9	Polybutylene pipe	☐		

10	Cistern water storage	☐		
	a. Number of gallons	☐		
11	Supplemental water purchased in past 2 years	☐		
	a. Name and contact information of entity from which supplemental water was purchased	☐		
12		☐		
	WATER If you know of any problems **NOW EXISTING** with the following, check the "Yes" column:	**Yes**	**Age If Known**	**Comments**
13	Water heater(s)	☐		
14	Water filter system	☐		
15	Water softener	☐		
16	Water system pump	☐		
17	Fire sprinkler system	☐		
18	Backflow prevention device	☐		
19		☐		
	WATER If you know of any problems **EVER EXISTING** with the following, check the "Yes" column:			
20	Leaks, backups, or other similar problems with any portion of the water or plumbing systems (including lines and water pressure) or damage therefrom	☐		
21	Well	☐		
22	Irrigation system	☐		
23	Water has been tested for potability	☐		
	a. Indicate result of test in comments and provide the most recent records and reports pertaining to such testing	☐		
24		☐		

G.	**WATER SUPPLY** Provide the following information regarding the Property:
1	Type of water supply: ☐ Public ☐ Community ☐ Well ☐ Shared Well ☐ Other ☐ None If the Property is served by a Well, a copy of the Well Permit ☐ **Is** ☐ **Is Not** provided. Well Permit #: _____ Drilling Records ☐ **Are** ☐ **Are not** provided. Shared Well Agreement ☐ **Yes** ☐ **No**.

H.	**SEWER/SEPTIC – General Information:** Do you know of the following on the Property**:** If yes, provide the requested information in Comments	**Yes**	**Comments**
1	Public sanitary sewer service	☐	
	a. Name and contact information of public sewer service provider	☐	
	b. Date the sewer line was last scoped	☐	
2	Community sanitary sewer service	☐	
	a. Name and contact information of community sewer service provider	☐	
	b. Date the sewer line was last scoped	☐	
3	Septic System	☐	If the Property is served by an on-site septic system, provide buyer with a copy of the permit
	a. Type	☐	☐ Tank ☐ Leach ☐ Lagoon
	b. Date of issuance of the latest Individual Use Permit	☐	
	c. Date of the latest inspection	☐	
	d. Date of the latest pumping	☐	
	e. System is under a maintenance agreement (pumped/inspected on a regular basis).	☐	☐ Maintenance agreement is mandated. Name and contact information of entity that mandates the maintenance agreement: ☐ Maintenance agreement is not Mandated
4	Other sanitary sewer service	☐	Type:
5	Gray water storage/use	☐	
6		☐	
	SEWER /SEPTIC If you know of any problems **EVER EXISTING** with the following, check the "Yes" column:	**Yes**	**Comments**
7	Leaks, backups, or other similar problems with any portion of the sewage systems (including sewer lines) or damage therefrom	☐	
8	Lift station (sewage ejector pump)	☐	
9		☐	

I.	**FLOODING AND DRAINAGE** If you know of any problems **EVER EXISTING** with the following on the Property, check the "Yes" column:	**Yes**	**Comments**
1	Flooding	☐	
2	Drainage	☐	
3	Grading	☐	
4	Water intrusion in the basement, crawl space, or other parts of the Property	☐	
5	Repairs made to control water intrusion in the basement, crawl space, or other parts of the Property	☐	
6		☐	
	DRAINAGE AND RETENTION PONDS – Other Information Do you know of the following on the Property:		
7	Drainage or retention ponds, dams, storm water detention basins, or other similar facilities	☐	

8		☐	

J.	**OTHER DISCLOSURES – IMPROVEMENTS** If you know of any problems **NOW EXISTING** with the following, check the "Yes" column:	**Yes**	**Comments**
1	Included fixtures and equipment	☐	
2	Stains on carpet	☐	
3	Floors	☐	
4		☐	

II. GENERAL

K.	**USE, ZONING & LEGAL ISSUES** If you know of any of the following **EVER EXISTING,** check the "Yes" column:	**Yes**	**Comments**
1	Zoning violation, variance, conditional use, violation of an enforceable PUD, or non-conforming use	☐	
2	Notice or threat of condemnation proceedings	☐	
3	Notice of any adverse conditions from any governmental or quasi-governmental agency that have not been resolved	☐	
4	Notice of zoning action related to the Property	☐	
5	Building code, city, or county violations	☐	
6	Violation of restrictive covenants or owners' association rules or regulations	☐	
7	Any building or improvements constructed within the past one year before this Date without approval by the owners' association or its designated approving body	☐	
8	Any additions or alterations made with a Building Permit	☐	
9	Any additions or non-aesthetic alterations made without a Building Permit	☐	
10	Notice of ADA complaint or report	☐	
11	Other legal action related to the Property	☐	
12	Any part of the Property leased to others (written or oral)	☐	
13	Archeological or historical designation on the Property	☐	
14	Threatened or Endangered species on the Property	☐	
15	Grandfathered conditions or uses	☐	
16		☐	

L.	**ACCESS & PARKING** If you know of any of the following **EVER EXISTING,** check the "Yes" column:	**Yes**	**Comments**
1	Any access problems, issues or concerns	☐	
2	Roads, trails, paths, or driveways through the Property used by others	☐	
3	Public highway or county road bordering the Property	☐	
4	Any proposed or existing transportation project that affects or is expected to affect the Property	☐	
5	Encroachments, boundary disputes, or unrecorded easements	☐	

6	Shared or common areas with adjoining properties, including, but not limited to, walls, fences and driveways	☐	
7	Requirements for curb, gravel/paving, or landscaping	☐	
8	Any limitations on parking or access due to size, number of vehicles, or type of vehicles in the past year	☐	
9		☐	

M.	**ENVIRONMENTAL CONDITIONS** If you know of any of the following **EVER EXISTING** on any part of the Property, check the "Yes" column:	**Yes**	**Comments**
1	Hazardous materials on the Property such as radioactive, toxic, or biohazardous materials, asbestos, pesticides, herbicides, wastewater sludge, radon, methane, mill tailings, solvents, or petroleum products	☐	
2	Underground storage tanks	☐	
3	Aboveground storage tanks	☐	
4	Underground transmission lines	☐	
5	Property used as, situated on, or adjoining a dump, landfill or municipal solid waste landfill	☐	
6	Monitoring wells or test equipment	☐	
7	Sliding, settling, upheaval, movement, or instability of earth, or expansive soils on the Property	☐	
8	Mine shafts, tunnels, or abandoned wells on the Property	☐	
9	Within a governmentally designated geological hazard or sensitive area	☐	
10	Within a governmentally designated floodplain or wetland area	☐	
11	Dead, diseased, or infested trees or shrubs	☐	
12	Environmental assessments, studies, or reports done involving the physical condition of the Property	☐	
13	Used for any mining, graveling, or other natural resource extraction operations such as oil and gas wells	☐	
14	Other environmental problems, issues, or concerns	☐	
15	Grease or sand pits or traps	☐	
16		☐	

N.	**COMMON INTEREST COMMUNITY – ASSOCIATION PROPERTY** If you know of any of the following **NOW EXISTING,** check the "Yes" column:	**Yes**	**Comments**
1	Property is part of an owners' association	☐	
2	Special assessments or increases in regular assessments approved by owners' association but not yet implemented	☐	
3	Problems, issues, concerns or defects in the Common Elements or Limited Common Elements of the Association Property	☐	
	COMMON INTEREST COMMUNITY – ASSOCIATION PROPERTY If you know of any of the following **EVER EXISTING,** check the "Yes" column:		
4	Has the Association made demand or commenced a lawsuit against a builder or contractor alleging defective construction	☐	

	of improvements of the Association Property (common area or property owned or controlled by the Association but outside the Seller's Property or unit)		
5		☐	
	COMMON INTEREST COMMUNITY – ASSOCIATION PROPERTY – Other Information: Name of the Owners' Associations governing the Property**:**		**Contact Information:**
6	Owners' Association #1:		
7	Owners' Association #2:		
8	Owners' Association #3:		
9	Owners' Association #4:		
10		☐	

O.	**METROPOLITAN DISTRICT** If you know of any of the following **NOW EXISTING,** check the "Yes" column:	**Yes**	**Comments**
1	Property is located within the boundaries of a Metropolitan District that was organized on or after January 1, 2000	☐	
2			
	METROPOLITAN DISTRICT- Information:		
3	Name of Metropolitan District #1		
4	Official website of the Metropolitan District #1		
5	Name of Metropolitan District #2		
6	Official website of Metropolitan District #2		
7		☐	

P.	**GENERAL DISCLOSURES** If you know of any of the following **EVER EXISTING,** check the "Yes" column:	**Yes**	**Comments**
1	Written reports of any building, site, roofing, soils, water, sewer, mold, or engineering investigations or studies of the Property. Provide copies of all such reports in possession of Seller.	☐	
2	Any property insurance claim submitted (whether paid or not)	☐	
3	Structural, architectural, and engineering plans and/or specifications for any existing improvements. Provide copies of all such reports in possession of Seller.	☐	
4	Property was previously used as a methamphetamine laboratory and not remediated to state standards	☐	
5	Government special improvements approved, but not yet installed, that may become a lien against the Property	☐	
6	Any litigation alleging negligent construction or defective building products	☐	

7	Any award or payment of money in lieu of repairs for defective building products or poor construction	☐	
8	Any release signed regarding defective products or poor construction that would limit a future owner from making a claim	☐	
9	Pending: (1) litigation or (2) other dispute resolution proceeding regarding the Property	☐	
10	Signs: Government or private restriction problems, issues or concerns	☐	
11	Property is subject to Deed Restrictions, other recorded document restrictions, or Affordable Housing Restrictions	☐	
12		☐	
	GENERAL – Other Information:		
13	Signs	☐	☐ Owned ☐ Leased. If leased, provide name and contact information for entity leased from:
14	U.S. Postal Service delivery available	☐	☐ Property ☐ Post Office ☐ Cluster Mailbox-Location and No.: _____ ☐ Other (specify): _____ _____
15		☐	

OTHER KNOWN ADVERSE MATERIAL FACTS: For purposes of this section, adverse material facts would include any non-observable or observable physical conditions existing on the Property. Describe any other known adverse material facts in or on the Property (attach additional pages as necessary):

_____
_____
_____
_____
_____
_____

The information contained in this SPD has been furnished by Seller(s), who certify it was answered truthfully, based on **Seller's CURRENT ACTUAL KNOWLEDGE**.

_____ _____
Seller Date Completed Seller Date Completed

ADVISORY TO BUYER:

1. Even though Seller has answered the above questions to Seller's current actual knowledge, Buyer should thoroughly inspect the Property and obtain expert assistance to accurately and fully evaluate the Property to confirm the status of the following matters are satisfactory to Buyer:
   a. the physical condition of the Property;
   b. the presence of mold or other biological hazards;
   c. the presence of rodents, insects, and vermin including termites;
   d. the legal use of the Property, including zoning and legal access to the Property;
   e. the availability and source of water, sewer, and utilities;
   f. the environmental and geological condition of the Property;
   g. the presence of noxious weeds; and
   h. any other matters that may affect Buyer's use and ownership of the Property that are important to Buyer as Buyer decides whether to purchase the Property.

2. Seller states that the information is correct to "Seller's current actual knowledge" as of the date of this form. The term "current actual knowledge" is intended to limit Seller's disclosure only to facts actually known by the Seller and does not include "constructive knowledge" or "common knowledge" or what Seller "should have known" about the Property. The Seller has no duty to investigate or inspect the Property or inclusions when this SPD is filled in and signed.
3. Valuable information may be obtained from various local/state/federal agencies, and other experts may assist Buyer by performing more specific evaluations and inspections of the Property.
4. Boundaries, location and ownership of fences, driveways, hedges, and similar features of the Property may become the subjects of a dispute between a property owner and a neighbor. A survey may be used to determine the likelihood of such problems.
5. Seller does not warrant that the Property or inclusions are fit for Buyer's intended purposes or use of the Property. Disclosure of the condition of an item is not to be construed as a warranty of its continued operability or as a representation or warranty that such item is fit for Buyer's intended purposes.

Buyer(s) acknowledge receipt of this SPD. Buyer(s) signature does not constitute approval of any disclosed condition as represented herein by Seller.

Buyer	Date	Buyer	Date